

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

----- X

SHARONDA SMITH,

Plaintiff,

-against-

**SUMMONS**

THE CITY OF NEW YORK, POLICE OFFICER  
PATRICK SWAYNE, Tax No. 962125, SERGEANT  
JEFFREY GRIFFIN, Tax No. 934963, SERGEANT  
MARIKA REGNIER, and POLICE OFFICERS JOHN  
DOES #s 1- 4 (names and numbers of whom are unknown  
at present),

Index No.:

The Basis of Venue is:  
Location of Incident

Plaintiff designates Bronx  
County as the place of trial.

Defendants.

----- X

**To the above named Defendants:**

**You are hereby summoned** to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
March 20, 2020

Yours, etc.

/s/

JACOBS & HAZAN, LLP.  
STUART E. JACOBS, ESQ.  
Attorney for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, New York 10007  
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007  
POLICE OFFICER PATRICK SWAYNE, Tax No. 962125, 46<sup>th</sup> Precinct, 2120 Ryer Ave, Bronx, NY 10457  
SERGEANT JEFFREY GRIFFIN, Tax No. 934963, 46<sup>th</sup> Precinct, 2120 Ryer Ave, Bronx, NY 10457  
SERGEANT MARIKA REGNIER, 46<sup>th</sup> Precinct, 2120 Ryer Ave, Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

SHARONDA SMITH,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER  
PATRICK SWAYNE, Tax No. 962125, SERGEANT  
JEFFREY GRIFFIN, Tax No. 934963, SERGEANT  
MARIKA REGNIER, and POLICE OFFICERS JOHN  
DOES #s 1- 4 (names and numbers of whom are unknown  
at present),

Defendants.

INDEX NO.:

VERIFIED COMPLAINT

**JURY TRIAL DEMANDED**

Plaintiff SHARONDA SMITH, by her attorneys, Jacobs & Hazan, LLP, as and for her  
Verified Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 20, 2017, at approximately 6:00 a.m., plaintiff was lawfully inside of her apartment located at 20 Richman Plaza, Apt. 31H, Bronx, New York, when defendants unlawfully entered her apartment without a warrant, probable cause or any legal justification to enter the apartment. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did defendants possess any objective facts to establish probable cause to believe plaintiff committed a crime or violated the law on any manner. Defendants subjected plaintiff to an unlawful search, false arrest, and false imprisonment, unlawfully handcuffed plaintiff and transported her to the 46<sup>th</sup> Precinct against her will whereat she was unlawfully fingerprinted, photographed and detained in a holding cell for many hours. Thereafter she was transported to Bronx Central Booking whereat the unlawful detention continued for many hours. The Bronx County District Attorney's Office declined to prosecute plaintiff and on March 20, 2017 at 9:30 pm and plaintiff was released from custody without being charged with a crime. By falsely arresting plaintiff, the defendants kept plaintiff away from her apartment long enough for her landlord to unlawfully evict her from the apartment by changing the locks on the apartment's doors. When plaintiff was released from custody she returned to her apartment and was unable to gain entry because the locks on the apartment were changed.

Plaintiff contacted defendants to request assistance in gaining reentry into her apartment. Although defendants knew plaintiff lived in the apartment and knew that the landlord changed the locks to the apartment while plaintiff was detained by defendants, the officers refused to assist plaintiff with gaining entry into her apartment and defendants refused to take any action against the landlord for unlawfully evicting plaintiff from her apartment. Due to defendants unlawful and unconstitutional behavior toward plaintiff, plaintiff was homeless and had no access to her belongings for three days before she was able to gain reentry into her apartment to remove her belongings. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully entered her apartment, searched, confined, falsely arrested, and falsely imprisoned plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

### **PARTIES**

2. Plaintiff SHARONDA SMITH is a resident of the United States of America.

3. POLICE OFFICER PATRICK SWAYNE, Tax No. 962125, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER PATRICK SWAYNE, Tax No. 962125, is and was at all times relevant herein, assigned to the 46th Precinct.

5. POLICE OFFICER PATRICK SWAYNE, Tax No. 962125, is being sued in his individual and official capacity.

6. SERGEANT JEFFREY GRIFFIN, Tax No. 934963, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT JEFFREY GRIFFIN, Tax No. 934963, is and was at all times relevant herein, assigned to the 46th Precinct.

8. SERGEANT JEFFREY GRIFFIN, Tax No. 934963, is being sued in his individual and official capacity.

9. SERGEANT MARIKA REGNIER is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT MARIKA REGNIER is and was at all times relevant herein, assigned to the 46<sup>th</sup> Precinct.

11. SERGEANT MARIKA REGNIER is being sued in his individual and official capacity.

12. New York City Police Officers John Does #s 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #s 1-4 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### **STATEMENT OF FACTS**

19. By way of background, plaintiff and her roommate rented an apartment located at 20 Richman Plaza, Apt. 31H, Bronx, New York from a man named "Michael" after they responded to an advertisement for the apartment on Craig's List.

20. Plaintiff and her roommate moved into the apartment in approximately October 2016.

21. Plaintiff and her roommate were told to leave their rent money inside of a safe located in the front closet of the apartment each month and the landlord advised plaintiff and her roommate that the money would be retrieved from the safe each month by the landlord.

22. Additionally, the safe had cameras attached to it so that it would always be clear who placed money into the safe and who removed money from the safe.

23. Plaintiff and her roommate always paid the landlord their rent on time.

24. After plaintiff and her roommate moved into the apartment, in addition to entering their apartment to retrieve rent money from the safe, the landlord began entering their apartment unannounced and without their permission to take showers in the apartment.

25. Plaintiff and her roommate thought it was strange that the landlord was showering in their apartment, but neither of them confronted him about the issue.

26. On March 19, 2017 the landlord entered plaintiff's apartment while her roommate was present, and she was at work and took a shower for several hours.

27. Thereafter, when the landlord was finished showering he went to the safe located in the front hallway of the apartment. Plaintiff's roommate was in the kitchen and could not see what the landlord was doing at the safe, but she heard the landlord scream and run out of the apartment.

28. After the landlord ran from the apartment plaintiff's roommate noticed blood on the floor where the landlord had been standing.

29. At no time relevant herein did plaintiff's roommate have an argument, disagreement or physical confrontation with the landlord in any manner.

30. Plaintiff' was not present in the apartment at any time on March 19, 2017 when the landlord was in their apartment.

31. On March 20, 2017, at approximately 6:00 a.m., plaintiff and her roommate were lawfully present inside of their apartment located at 20 Richman Plaza, Apt. 31H, Bronx, New York, when the individually named defendant police officers unlawfully entered the apartment, searched, handcuffed and falsely arrested plaintiff without probable cause, or any legal justification.

32. On March 20, 2017 at approximately 6:00 am, the individually named defendant police officers forcefully entered plaintiff's apartment without plaintiff's consent and without a warrant or any other legal basis to enter the apartment.

33. The individually named police officer defendants unlawfully handcuffed plaintiff and her roommate and told plaintiff and her roommate that they had to come with defendants to the precinct to answer some questions because their landlord, "Michael," claims that on March 19, 2017 plaintiff's roommate punched him in the head when he was in her apartment and that plaintiff hit his hand with an object causing it to bleed.

34. The individually named police officers saw that Michael did not have any visible injuries to his head from being allegedly punched when the officers met with him to take his complaint.

35. Michael was not bruised and had no physical markings that would in any way indicate that he was punched by plaintiff or anyone else.

36. Plaintiff's roommate immediately informed the defendant police officers that she never punched or in any way assaulted Michael in any way, and that on March 19, 2017 Michael unlawfully entered their apartment unannounced, took a shower for several hours and then cut himself while he was doing something in near where the safe was located in the front closet of the apartment.

37. Plaintiff's roommate advised the defendants that the safe had a camera on it and the officers could look at the camera footage to see that Michael's allegations were false.

38. Additionally, plaintiff provided the defendants with proof that Michael's allegations were false.

39. Specifically, plaintiff advised the officers that she was not even present at the apartment when Michael alleges the incident occurred on March 19, 2017 because she was at work, and she showed the defendants her work schedule and proof that she was at work at the time Michael alleged the incident occurred.

40. Plaintiff and her roommate provided defendants with proof that the allegations made against them by Michael were fabricated and untrue.

41. The defendants did not possess any objective facts to establish probable cause to arrest plaintiff for violating the law or committing a crime.

42. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the defendants have any basis to believe she violated the law or committed a crime.

43. Nevertheless, defendants falsely arrested plaintiff without legal justification or probable cause.

44. Upon information and belief, "Michael" made the false report against plaintiff and her roommate in order to ensure they were out of their apartment for a long enough period of time for Michael to change the locks to the apartment and to prevent them from accessing their apartment again.

45. Upon information and belief, "Michael" was conducting a scam where he would rent out the apartment by posting an advertisement on Craig's List, and upon renting out the apartment he would collect rent and security deposits from the tenants, and then unlawfully evict the tenants from the apartment by changing the locks to the apartment and stealing the tenants' security deposits and money.

46. However, plaintiff and her roommate had opposite work schedules and one of them was usually home while the other was at work. Therefore, Michael never had an opportunity to unlawfully evict them from the apartment by changing the locks of the apartment while they were not present in the apartment.

47. Michael knew that plaintiff and her roommate would be taken from their apartment for enough time for him to change the locks if he filed a false complaint against them with the police and had them arrested.

48. In fact, after plaintiff and her roommate were arrested Michael changed the locks on the front door of the apartment and as soon as Michael finished changing the locks on the front door of the apartment he contacted the District Attorney's Office and told the District attorney's Office not to prosecute plaintiff and her roommate.

49. Plaintiff was transported by the defendant police officers to the 46<sup>th</sup> Precinct against her will, where she was unlawfully photographed, searched, fingerprinted and detained in a holding cell by the defendants.

50. At no time relevant herein did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff's possession, custody or control.

51. After many hours of being unlawfully detained at the 46<sup>th</sup> Precinct, plaintiff was transported from the 46<sup>th</sup> Precinct to Bronx County Central Booking and unlawfully detained in several holding cells for many additional hours.

52. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff had committed a crime.

53. On March 20, 2017 at approximately 9:30 p.m. the District Attorney declined to prosecute plaintiff, and plaintiff was released from custody without being charged with a crime.

54. When plaintiff returned to her apartment, she was unable to get into her apartment because Michael changed the locks on the front door.

55. Plaintiff called the police to help her gain entry into her apartment, but when defendants arrived at plaintiff's apartment they refused to assist her in gaining entry back into her apartment even though they knew Michael unlawfully changed the locks and unlawfully evicted her from the apartment.

56. Plaintiff was unable to gain reentry into her apartment because the locks on her apartment had been changed, and she was unable to gain entry into her apartment for three days to retrieve her belongings and she was homeless for three days.



57. As a result of the false arrest and imprisonment of plaintiff, plaintiff missed three days of work, resulting in plaintiff lost income.

58. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendants have an objective factual basis to establish reasonable suspicion or probable cause to believe plaintiff committed a crime.

59. Defendants unlawfully handcuffed, falsely arrested and falsely imprisoned plaintiff without probable cause or any legal justification to arrest plaintiff.

60. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights are liable to plaintiff for their failure to intervene.

61. Plaintiff suffered severe emotional distress stress caused by defendants' unlawful stop, question, frisk, search, and false arrest/ false imprisonment of plaintiff.

62. The unlawful stop, question, frisk, search, false arrest, and false imprisonment of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

### **FIRST CAUSE OF ACTION**

#### **Violation of Plaintiff's Fourth and Fourteenth Amendment Rights**

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully entered plaintiff's apartment, caused plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

## **SECOND CAUSE OF ACTION**

### **False Arrest and False Imprisonment**

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

## **THIRD CAUSE OF ACTION**

### **Unlawful Search**

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

74. Defendants lacked probable cause to search plaintiff.

75. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

#### **FOURTH CAUSE OF ACTION**

##### **Failure to Intervene**

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

81. Defendants failed to intervene to prevent the unlawful conduct described herein.

82. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

83. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

**FIFTH CAUSE OF ACTION****Municipal Liability under 42 U.S.C. § 1983**

87. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States

89. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to policies, customs and practices wherein New York City Police Officers arrest individuals without probable cause, create false versions of events to justify their actions.

90. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiffs' constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

91. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs as alleged herein.

92. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

93. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiffs were unlawfully arrested and prosecuted.

94. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiffs' constitutional rights.

**JURY DEMAND**

95. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

## PRAYER FOR RELIEF

**WHEREFORE**, plaintiff Sharonda Smith demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and reasonable attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
March 20, 2020

By: /s/  
STUART E. JACOBS  
DAVID M. HAZAN  
JACOBS & HAZAN, LLP  
Attorneys for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, NY 10007  
(212) 577-2690

**ATTORNEY'S VERIFICATION**

**DAVID M. HAZAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
March 20, 2020

\_\_\_\_\_  
/s/  
DAVID M. HAZAN